

HEADNOTE

“1. If the claimant has not correctly named the defendant in the statement initiating the proceedings, the Court may allow the claimant to rectify the error. The request can be granted if the defendant is not unreasonably prejudiced by the incorrect statement of name and its rectification. As a rule, there will be no unreasonable prejudice if, despite the incorrect statement of name, it must have been clear to the defendant and to the Court, based on the circumstances of the case, that the claimant intended the statement for revocation to be directed against the defendant.

2. Rule 242.1 RoP is to be interpreted to mean that if the decision of the Court of Appeal is not a final order or decision concluding an action, the Court of Appeal, in the case at hand, will not issue an order for costs in respect of the proceedings at first instance and at appeal. However, the outcome of the appeal must be considered when, in the final decision on the action at hand, the Court determines whether and to what extent a party must bear the costs of the other party because it was unsuccessful within the meaning of Article 69 UPCA.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Action for revocation

PATENT
EP 3 498 115

Vaporization device systems and
methods

KEYWORDS

Rectification of the name of a party

Order for costs in the decision of the Court ...

Article 69 Legal costs

SUMMARY

The Court of Appeal in Luxembourg ruled on an action for revocation. The patent at issue relates to vaporization device systems and methods. According to the headnotes of the decision, a court may correct an incorrectly named defendant in the statement initiating proceedings if the defendant was not unreasonably prejudiced and would have understood from the circumstances that the claim was intended against them. Under Rule 242.1 of the Rules of Procedure, when the Court of Appeal's decision does not finally conclude the action, the Court will not issue a separate costs order for the first instance and appeal proceedings, though the appeal outcome will be considered when determining costs allocation in the final judgment on the merits.